

		The Court concludes the date of the accrual of the causes of action asserted in this case is a triable issue of material fact. The trial date remains. Moving party shall give notice.
10	Parker vs. City of Garden Grove 2025-01474666	Demurrer to Amended Complaint Defendant City of Garden Grove's unopposed Demurrer to the First Amended Complaint is SUSTAINED. Plaintiff Ana Christina Parker, in pro per, filed an untimely opposition which the Court has read and considered. Governmental Immunities Government Code section 818.4 provides that public entities are not liable for injuries "caused by the issuance, denial, suspension or revocation of, or by the failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where the public entity or an employee of the public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked." Further, Government Code section 820.2 provides that "a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused." Section 821.2 of the Government Code provides that "[a] public employee is not liable for an injury caused by his issuance . . . of . . . any permit . . . where he is authorized by enactment to determine whether or not such authorization should be issued. ..."

		The issuance of building permits is a discretionary function. (Thompson v. City of Lake Elsinore (1993) 18 Cal.App.4th 49, 57.) In this case, Plaintiff's causes of action are all based on her claim that the City is liable for issuing building permits to her neighbors. Based on the foregoing authorities, the City and its employees are immune from liability for issuing such permits. Accordingly, the demurrer to the FAC and each cause of action alleged therein is SUSTAINED on this ground. First Cause of Action – Inverse Condemnation "To state a cause of action for inverse condemnation, the plaintiff must allege the defendant substantially participated in the planning, approval, construction, or operation of a public project or improvement which proximately caused injury to plaintiff's property." (Wildensten v. East Bay Regional Park Dist. (1991) 231 Cal.App.3d 976, 979-980.) A city is not liable in inverse condemnation for injury to private property within a subdivision from completely private construction – privately designed, financed and build – on a private street where the city's sole affirmative action was the issuance of permits and approval of the subdivision map. (Yox v. City of Whittier (1986) 182 Cal.App.3d 347, 353.) Similarly, the City's only alleged conduct was the issuance of building permits for a private construction. The FAC indicates the construction occurred on private property and for private use. There are no allegations the project was intended for public use. Accordingly, the demurrer to the first cause of action is SUSTAINED. Second Cause of Action – Private Nuisance The FAC alleges the City's actions and omissions created conditions that substantially interfered with Plaintiff's use and
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		enjoyment of her property and constituted a private nuisance. (FAC, ¶¶ 32-33.) A public entity does not have a mandatory duty to abate a nuisance. (See Fox v. County of Fresno (1985) 170 Cal.App.3d 1238, 1239.) Therefore, the City cannot be liable for failing to abate any alleged private nuisance. Additionally, Government Code section 818.2 provides that "a public entity is not liable for an injury caused by ... failing to enforce any law." Accordingly, the demurrer to the second cause of action is SUSTAINED. Third Cause of Action – Negligence The Government Claims Act ("Act") provides that "[e]xcept as otherwise provided by statute... [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, § 815(a).) Any claim of negligence must therefore be based on statute. Here, Plaintiff has not identified any statute violated by the City that would give rise to a negligence claim against the City. In opposition, Plaintiff agrees to remove the cause of action from her complaint. Accordingly, the demurrer to the third cause of action is SUSTAINED without leave to amend. Fourth Cause of Action – Injunctive Relief An injunction may be either mandatory or prohibitory. A prohibitory injunction is "a writ or order requiring a person to refrain from a particular act." (Code Civ. Proc. § 525.) A mandatory injunction requires a person to take affirmative action that changes the parties' position. (Civ. Code § 3367(2).)
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	Here, Plaintiff seeks a mandatory injunction to change the status quo by requiring action by the City – specifically to remove the structures constructed by Plaintiff’s neighbors on their private property. No facts have been alleged to show that the neighbors’ structures constitute an emergency, health risk or harm. Thus, there are no facts alleged to support the requested mandatory injunction. Further, Plaintiff’s injunction cause of action is improper because a request for an injunction is a remedy, not a cause of action. (Marlin v. Aimco Venezia, LLC (2007) 154 Cal.App.4th 154, 162.) A complaint with a stand-alone cause of action for injunctive relief is subject to demurrer. (Granny Purps, Inc. v. Cnty. Of Santa Cruz (2020) 53 Cal.App.5th 1, 9.) Accordingly, the demurrer to the fourth cause of action is SUSTAINED. Plaintiff has 15 days leave to amend, except as otherwise indicated herein. ***Plaintiff is admonished that the Court will not consider late filings in the future. Moving Party shall give notice.
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